IN THE HIGH COURT OF JUSTICE Claim No. CL-2026-000214

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES – COMMERCIAL COURT (KBD)

BETWEEN HARTWELL PHARMA LIMITED (Claimant) and CRYOVANCE COLD CHAIN LIMITED (Defendant)

DEFENCE

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1. Paragraphs 1 to 8 of the Particulars of Claim are admitted, save that it is denied that the Defendant warranted that no excursion above 8°C would ever occur; the Defendant's obligation was to take reasonable steps to maintain the validated cold-chain.

2. As to paragraph 10, it is admitted that the refrigeration unit carrying batch DS-2025-041 suffered a mechanical failure on 15 September 2025. It is averred that the failure was caused by a latent defect in a compressor component which could not reasonably have been detected on the Defendant's qualification and maintenance regime. The peak temperature and duration of the excursion are not admitted and the Claimant is put to proof.

3. As to paragraph 14, it is admitted that the refrigeration unit carrying batch DS-2025-047 was switched off during a rest period. It is denied that this caused the loss of the batch; the Defendant avers that the excursion to 14.1°C was of short duration and that the Claimant has failed to prove that the batch was thereby rendered out of specification.

4. It is denied that both batches were total losses as alleged. The Claimant is put to strict proof of its stability assessments, its quarantine and destruction decisions, and of the values attributed to the batches.

5. As to loss, no admissions are made. The re-manufacture, expediting, QP and disposal costs are not admitted and are put in issue.

6. Further and in any event, the Defendant's liability (if any, which is denied) is limited by clause 11.3 of the Services Agreement to the greater of £500,000 or the charges paid by the Claimant in the preceding twelve months, namely £430,000. Clause 11.3 was a freely negotiated allocation of risk between commercial parties and is reasonable within the meaning of the Unfair Contract Terms Act 1977. The Claimant's contentions at paragraph 18 of the Particulars of Claim are denied.

7. Save as expressly admitted, each and every allegation in the Particulars of Claim is denied as if set out and traversed seriatim.

STATEMENT OF TRUTH

The Defendant believes that the facts stated in this Defence are true.

Signed: Pemberton Rowe LLP, Solicitors for the Defendant. Dated 13 March 2026.